

# Evaluating AI Governance and Regulation in Developing Countries: A Comparative Analysis with a Proposed Framework

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## Abstract

The proliferation of artificial intelligence (AI) is booming in developing nations, but the current models of governance are not well fit to the institutional, legal, and technical realities of the Global South. This paper will examine the AI governance readiness of Bangladesh, India, Nigeria, and Brazil and propose a context specific assessment model to the developing world context. The study is based on a qualitative Systematic Literature Review (SLR) and content analysis of national policy documents, international guidelines and 29 peer reviewed sources, which are used to assess the governance readiness in four areas: policy and legal framework, institutional capacity, risk management, technical infrastructure, and ethics and inclusion. The results indicate that the policy ambition in all four countries is stronger than implementation preparedness, and a consistent lack of enforcement, coordination, and infrastructure preparedness. The study aims to fill this gap by suggesting the Developing Country AI Governance (DCAG) Framework and a Governance Readiness Dashboard. Although the study is confined to a small, qualitative, four country sample, it offers a practical contribution to the policy making, research and international organization communities.

## CCS Concepts

• **Social and professional topics** → **Government technology policy**; • **Computing methodologies** → *Artificial intelligence*; • **Information systems** → **Decision support systems**.

## Keywords

Global South, Bangladesh, India, Nigeria, Ethical Inclusion, Digital Sovereignty, Institutional Capacity, Policy Enforcement

## ACM Reference Format:

Anonymous Author(s). 2026. Evaluating AI Governance and Regulation in Developing Countries: A Comparative Analysis with a Proposed Framework. In *Proceedings of 4th International Conference on Computing Advancements (ICCA 2026)*. ACM, New York, NY, USA, 6 pages. <https://doi.org/XXXXXXX.XXXXXXX>.

## 1 Introduction

### 1.1 Problem Background

Governments in the Global North are not keeping up in terms of legal and institutional frameworks to regulate AI use, which is also expanding more rapidly in these fields than in the Global South [24].

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ICCA 2026, Dhaka, Bangladesh

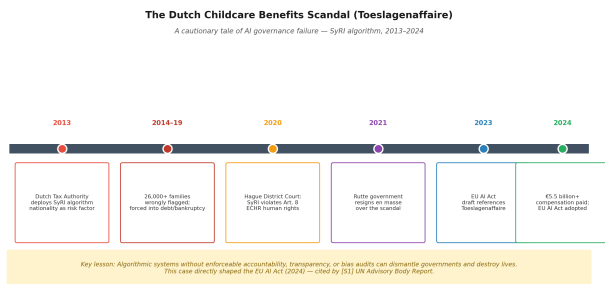
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ACM ISBN 978-1-4503-XXXX-X/2026/10  
<https://doi.org/XXXXXXX.XXXXXXX>

This is a tremendous disparity. Only one third of developing countries have integrated national AI strategies, while 118 countries, the vast majority of which are in the Global South, are completely excluded from global discussions on AI governance, UNCTAD's Technology and Innovation Report 2025 reveals. Meanwhile, the OECD AI Policy Navigator shows more than 900 AI policy initiatives in 69 countries, while Maslej et al. [15] reveal that mentions of AI in legislative proceedings rose by ninefold between 2016 and 2024, accounting for 21.3% of this growth in 75 countries between 2023 and 2024. There are no initiatives for the governance of AI that involve all countries except the G7 [24]. For most of the developing world, the deployment of AI is not running faster than governance and is not simply a matter of a small margin, but rather of a structural, systemic gap, one that is exclusionary and stems from the lack of representation in the rules making process. Bangladesh's Draft National AI Policy 2026-2030 focuses on AI alignment with SDGs and digital sovereignty, while India's AI Governance Guidelines highlight fairness, accountability, and trust, and Nigeria's National AI Strategy aims for inclusive development and Brazil's AI Bill (PL 2338/2023) proposes a risk based legal framework modelled after the EU AI Act. The aspirations are genuine, but aspirations are not governance. None of the four countries has an enforceable AI liability regime as robust as that of the EU AI Act [3], public-sector AI datasets are routinely encoded with historical biases against women, rural populations and minorities [1, 2], and the technical, legal and budgetary resources available to audit, certify or regulate these systems are still very limited.

This is the case as is shown by the Dutch Toeslagenaffaire. The tax authority of the Netherlands, in 2013-2019, implemented an algorithm (SyRI) for detecting fraud in childcare benefit based on nationality and dual citizenship as risk factors, which was opaque. More than 26,000 fake families, mostly Moroccan, Turkish and Surinamese, have been accused, declared bankrupt or lost their children [23]. The Hague District Court ruled on the system's infringement of Article 8 of the European Convention on Human Rights in 2020 and in January 2021 the Rutte government stepped down because of the scandal. In 2024, the compensation reached over 5.5 billion and the incident was a key case study in the development of the EU AI Act. Exposure to Dhaka, Lagos or São Paulo is much greater if a country that has established institutions has not been able to stop this failure. Fig. 1 is a summary of the timeline.

### 1.2 Related Studies and Research Gap

There is a lot of literature on AI governance, although it is not uniform. Wakunuma [27] did not create a comparative evaluation model, but mapped the African governance structures. The World Bank [29] tracked the evolution of the national strategies, but did not create a scoring instrument. The UN High Level Advisory Body on Artificial Intelligence [23] advocated global governance inclusively but at a level that was above the national readiness level.



**Figure 1: Timeline of the Dutch Toeslagenaffaire (2013–2024).**

In normative terms, Png [19], Kavanagh [10], and De Carvalho et al. [2] contend that actors of the Global South need to construct, as opposed to inherit, governance agendas, and Brown et al. [1] report on the misinterpretation of local priorities by frameworks constructed in the North. The tension between sovereignty and internationalism, which directly applies to Bangladesh’s promises of data sovereignty, is discussed by Liu and Song [13] and Ishkhanyan [9]; Von Ingersleben-Seip and Mügge [26] argue for differentiated cooperation at various levels of capacity. Monteiro and Singh [16] suggest an adaptive Wheel of AI Governance based on Global South realities, Udechukwu [22] promotes culturally contextual datasheets, and Wang et al. [28] discusses algorithmic governance within the public administration. The absence of all this work is a practical framework, a multi dimensional and developing country specific one, which will allow the evaluation and rating of Global South countries by a common framework.

### 1.3 Research Objectives and Questions

The article fills the gap as stated above by providing answers to two questions. RQ1: How do Bangladesh, India, Nigeria, and Brazil compare in terms of AI governance readiness across the dimensions of policy, institutional capacity, risk management, technical infrastructure, and ethical inclusion? RQ2: What do the dimensions and the indicators of a practical and context sensitive AI governance evaluation framework for developing countries look like?

### 1.4 Research Contributions

This article has a three fold contribution. It will first collate the most relevant literature on AI governance globally and regionally, published in 2025–2026, in a coherent picture of the evolving landscape of AI governance in the country. Second, it presents the DCAG Framework, which is a five dimension assessment model with quantifiable signals designed on countries of different institutional capacity. Third, it adds a UX/UI prototype Governance Readiness Dashboard which makes the framework a working tool. There are four target groups. First, policy makers and government ministries in developing countries that require a practical, context specific instrument to evaluate and enhance their readiness for AI governance. Second, AI researchers and academics in the Global South who are looking for a replicable, multi dimensional framework for comparative governance analysis. Third, civil society organizations and advocacy groups focused on digital rights and algorithmic accountability and inclusion in communities impacted

by AI. Fourth, international organizations that need evidence on a country by country basis to prioritize technical assistance, capacity building programmes, and funding allocation in the Global South (such as the UN, World Bank, and ITU).

## 2 Research Methodology

### 2.1 Data Collection Method

The design of the article is a qualitative comparative research design that was developed from the Systematic Literature Review (SLR) and content analysis of the documents of national policies. The SLR methodology was chosen because the research problem is of governance and policy nature which requires a thorough review and synthesis of the existing knowledge, as Kumar [12] pointed out, Literature based methods can be used to map and assess an existing knowledge domain with higher level of analytical rigor than can be achieved with primary data collection. The paradigm used is interpretivist constructivist which sees the readiness to govern as a socially constructed phenomenon that is context specific and cannot be measured with one universal scale [8, 18].

### 2.2 SLR Process and Corpus Profile

The PRISMA [11] guidelines were followed for conducting the systematic literature review in six databases: Scopus, IEEE Xplore, ACM Digital Library, SpringerLink, ScienceDirect, and Google Scholar. The Boolean operator search query constructed by the intersection of the terms of AI governance and developing countries (Bangladesh, India, Nigeria, Brazil, Global South) and policy related terms (limited to title, abstract and key words). The time-frame (2019–2026) included discussions on post EU GDPR (2018) governance, COVID-19 expedited AI deployment (2020+) and responses to the EU AI Act [3]. After completing preliminary search and excluding 287 records due to duplication, 198 were screened by dual reviewers based on research methodology of Kumar [12] and 134 irrelevant records were excluded and 64 were given access to full text. This left out 39 others, leaving 25 primary sources. In contrast, backward snowballing identified 7 candidates (2 of which were used as secondary citations), while forward search added 4 recent papers that were published by Brown et al. [1], De Carvalho et al. [2], Kavanagh [10] and Von Ingersleben-Seip and Mügge [26]. Governance dimensions were extracted into data that were validated with five international instruments: EU AI Act, NIST AI RMF [21], UNESCO Ethics Recommendation [25], OECD AI Principles [18], and UN High Level Advisory Body Final Report [23]. Key studies integrated in the corpus were those by Farhad [4] on governance capacity in the Global South, Heng et al. [5] on the creation of Senegal Cambodia AI ecosystems, Ishkhanyan [9] on the paradox of sovereignty internationalism, Liu & Song [13] on the concept of digital colonialism, Maghsoudi et al. [14] on concerns regarding sustainable development, Monteiro & Singh [16] on governance frameworks, Png [19] on the roles of stakeholders in the Global South, Udechukwu [22] on culturally contextual datasheets, and Wakunuma [27] on the concept of responsible AI in Africa, as well as the accessibility case study of Indonesia e-Tilang [7]. Policy documents were ITU AI Governance Report [8], World Bank Global Trends [29], UNCTAD Technology and Innovation Report [24] and

Bangladesh National AI Policy Draft [6]. The principles of Nielsen [17] were used in the usability assessment.

A structured three point rubric was used to score each country against the five dimensions of the DCAG: Low (1) means that a country does not have a formal policy, mechanism, or institutional structure for the indicator; Medium (2) means that a country has a stated policy or initiative but with limited evidence of enforcement, coordination, or implementation; and High (3) means that a country has a demonstrable framework in place and evidence of enforcement capacity. Content analysis was performed independently by two authors who awarded scores based on the content of the primary policy documents and supported this by the peer-reviewed literature in the corpus. Any disagreements were settled by discussion until consensus was reached.

### 2.3 Ethical Standards of Engineering Practice

This work is inherently protected ethically. No personal information was collected, the study is conducted using only publicly available policy documents and published academic literature, therefore there is no risk of the participants. The study directly engages with the inclusion, equity and rights of historically marginalized communities in AI influenced systems, in accordance with the IEEE and ACM code of professional ethics. While the authors acknowledge the normative nature of using primarily English language based scholarship, Western indexed scholarship and actively engaging with the voices of Global South [1, 27]. Sources are cited in accordance with APA 7th edition and no information has been copied without giving credit to the source.

## 3 Results and Analysis

### 3.1 Country Governance Profiles

Content analysis led to unique governance profiles for each case country. While the SDG and the idea of digital sovereignty are mentioned in the Draft National AI Policy 2026-2030, there is no explicit mention of a regulator or a list of risks classified [6, 13]. The AI Governance Guidelines (2025) of India provide an architecture of principles that are based on trust, fairness, and accountability, but there is an unequal enforcement across the sectors. While the National AI Strategy of Nigeria recognizes the need for AI to be inclusive and ethical, it does not provide any specific tools or mechanisms for enforcement [27]. The most legally advanced of the four is the AI Bill (PL 2338/2023) of Brazil, which follows a risk tiered approach, but is yet to be officially passed. The general trend is drastic: the ambition of policy in any country significantly exceeds the institutional and enforcement capacity [4, 20].

### 3.2 The DCAG Framework (RQ2)

This evidence is structured into five dimensions in the DCAG Framework which are supported by measurable indicators based on the SLR synthesis. The levels of the dimensions are ordered in terms of dependency, with mechanisms of ethics and inclusion at the top level unable to operate without the lower level of legal foundation, institutional capacity, risk measures and technical infrastructure [8, 16, 24]. The stratified structure is presented in Fig. 2, and the description of the indicators is given in Table 1.

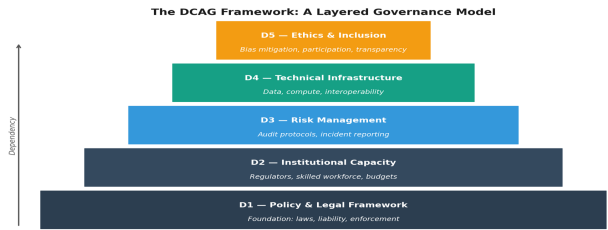


Figure 2: The DCAG Framework - a layered dependency model.

### 3.3 Comparative Analysis (RQ1)

The evidence was based on policy documents and the literature to score each country on a three point scale: Low (1), Medium (2), High (3) against each dimension. Table 2 presents the results. India and Brazil have the highest level of preparedness (12/15) with more developed policy frameworks and stronger institutional and technical basis. Both Bangladesh and Nigeria have 7/15, which is a characteristic of the early stage policy development and almost no enforcement institutions. Normative commitments to fairness and transparency are not operational in the sample, as evidenced by the Medium scores in Ethics and Inclusion, which are the same in all four countries. The second trend is the difference between ambition and readiness, which is 85% to 47% for Bangladesh, and 87% to 49% for Nigeria, and 80% to 68% for India and Brazil.

### 3.4 Solution Validation

The three points below are the aspects of the DCAG Framework that were tested. To begin with, its five dimensions were compared to the key international AI governance documents: the EU AI Act, the NIST AI Risk Management Framework, the UNESCO Recommendation on the Ethics of Artificial Intelligence, the OECD AI Principles, and the UN High-Level Advisory Body Final Report. As it can be seen from Fig. 3, all DCAG dimensions are included in at least three of these 5 instruments and most of them are included in four or more; therefore, it can be considered as theoretically consistent [21, 23, 25]. Second, the findings from the comparative country analysis were found to be consistent with independent research [4, 9, 13, 20] which identified gaps in enforcement, institutional capacity and digital sovereignty in the Global South governance challenges. Third, the dashboard design was assessed based on the usability principles of Nielsen and WCAG 2.1 AA standards, which means that the tool can be used and adopted in resource-limited settings [17, 22].

### 3.5 The Governance Readiness Dashboard

To create the DCAG Framework as a usable tool, the authors created a conceptual design prototype of a Progressive Web Application with offline capabilities for low bandwidth environments; the Governance Readiness Dashboard. The prototype has not been tested for empirical usability; it has been conceptually evaluated based on Nielsen's ten usability heuristics [17] and WCAG 2.1 AA accessibility standards, which show that it is theoretically usable in the

Table 1: DCAG Framework Dimensions and Indicators

| Dimension              | Key Indicators                                                                          | Primary Sources                   |
|------------------------|-----------------------------------------------------------------------------------------|-----------------------------------|
| D1: Policy & Legal     | AI strategy; legal liability; risk classification; enforcement mechanism                | [25]; [18]; [6]; [3]; [9]; [26]   |
| D2: Institutional      | Dedicated AI regulator; inter agency coordination; skilled workforce; budget allocation | [4]; [23]; [20]; [27]; [28]; [13] |
| D3: Risk Mgmt.         | Risk assessment; audit; incident reporting; sectoral standards                          | [21]; [8]; [14]; [7]              |
| D4: Technical          | Data ecosystems; compute capacity; internet penetration; interoperability               | [29]; [24]; [5]; [16]             |
| D5: Ethics & Inclusion | Bias mitigation; public participation; minority protection; transparency                | [19]; [1]; [10]; [2]; [22]        |

Table 2: Comparative AI Governance Readiness Scores (DCAG)

| Dimension          | Bangladesh | India      | Nigeria    | Brazil     |
|--------------------|------------|------------|------------|------------|
| D1: Policy & Legal | Medium (2) | High (3)   | Medium (2) | High (3)   |
| D2: Institutional  | Low (1)    | Medium (2) | Low (1)    | Medium (2) |
| D3: Risk Mgmt.     | Low (1)    | Medium (2) | Low (1)    | Medium (2) |
| D4: Technical      | Low (1)    | High (3)   | Low (1)    | High (3)   |
| D5: Ethics         | Medium (2) | Medium (2) | Medium (2) | Medium (2) |
| Total Score        | 7 / 15     | 12 / 15    | 7 / 15     | 12 / 15    |

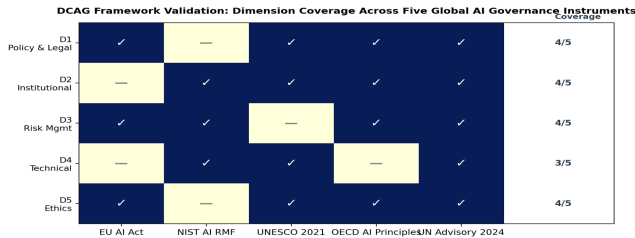


Figure 3: DCAG validation matrix: dimension coverage across five major AI governance instruments.

resource limited environment. The dashboard contains five functional screens: (1) Country Overview: A radar chart view to help policymakers get a quick overview and make informed decisions at a glance; (2) Dimension Deep Dive: To facilitate researchers to find evidence and citations at the indicator level; (3) Comparative Analysis View: To enable multi country comparative analysis by international organisations; (4) Recommendation Engine: To help guide government ministries to take specific actions; and (5) Policy Tracker: To facilitate tracking of change over time.

## 4 Conclusion

### 4.1 Concluding Remarks

The article filled an existing gap in the literature on AI governance: the lack of a practical and developing country specific comparative framework of governance readiness. Based on the systematic review of 29 primary sources and the content analysis of national AI policy

documents of Bangladesh, India, Nigeria, and Brazil, the study developed the DCAG Framework, which has five dimensions: Policy and Legal Framework, Institutional Capacity, Risk Management, Technical Infrastructure, and Ethics and Inclusion. Comparative assessment ranked India and Brazil at 12/15, and Bangladesh and Nigeria at 7/15, and the institutional and enforcement capacity was the same in all cases: policy ambition significantly outstrips institutional and enforcement capacity. The Toeslagenaffaire is a real life example of how costly this pattern can be, and the Governance Readiness Dashboard suggested here is the practical tool with the help of which governments, researchers, and international organizations will be able to start bridging the gap.

### 4.2 Limitations

There are four limitations of this study. To begin with, comparative evaluation is not grounded on a complete quantitative measurement model, but on qualitative scoring, which can decrease the accuracy of cross-country evaluation. Second, the study covers only four countries: Bangladesh, India, Nigeria and Brazil, which, although geographically and institutionally different, account for only a fraction of the more than 130 developing countries in the world; the findings need to be broadly empirically validated before they can be applied to other countries. Third, the Bangladesh National AI Policy is in a draft form, and so its legal and institutional implications might change before it is officially adopted and put into practice. Finally, there is a bias towards English language and internationally indexed publications and not necessarily the capture of relevant governance scholarship published in Bangla, Hausa or Portuguese.



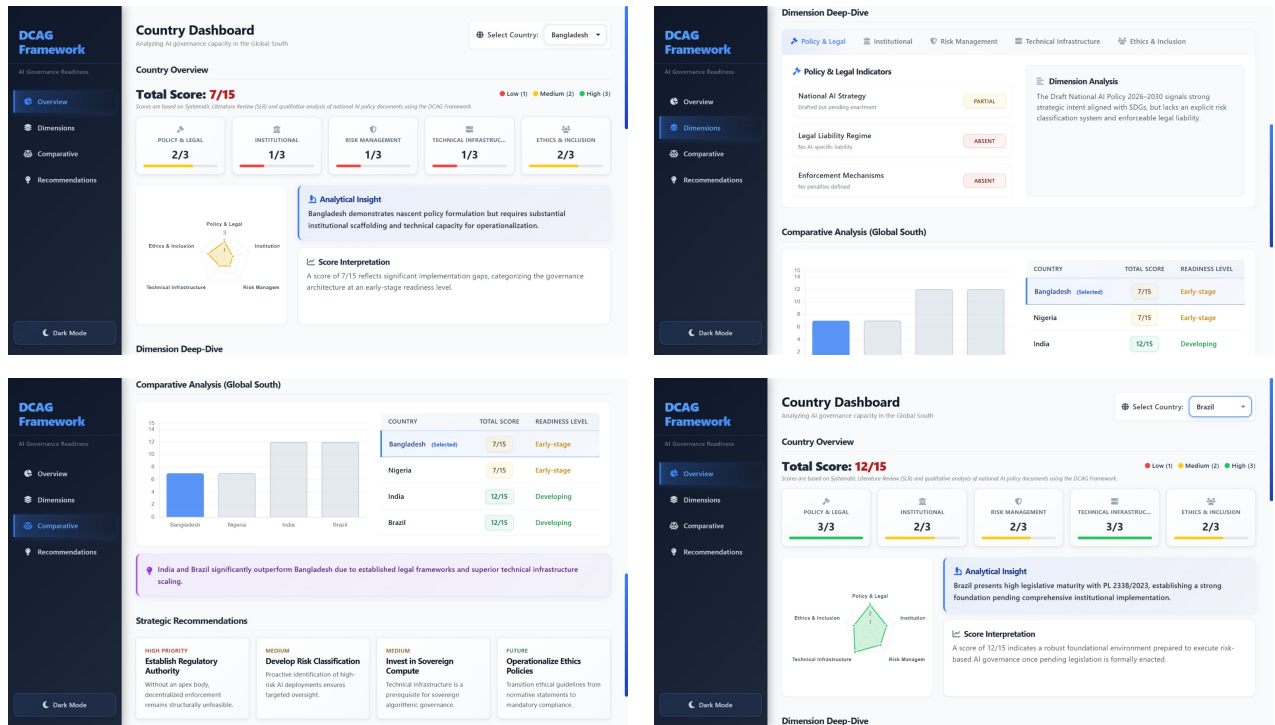


Figure 4: DCAG Governance Readiness Dashboard - four functional screens: (a) Country Overview radar chart, (b) Dimension Deep Dive, (c) Comparative Analysis View, (d) Recommendation Engine.

### 4.3 Future Research Scope

Future studies can extend generalizability of the DCAG Framework to a larger sample: Vietnam, Pakistan, Colombia and Ghana to test the generalizability and optimize indicators. A Delphi based expert validation study of practitioners, legal scholars and policy makers from the Global South would strengthen the empirical credibility of the study. The prototype dashboard can be transformed to a working dashboard and tested with Government ministries in Bangladesh and Nigeria to generate empirical evidence on UI/UX. The longitudinal monitoring of the readiness scores could turn it into a dynamic policy monitoring tool, while the quantitative data sources (ITU Digital Development Index scores [8]; World Bank governance indicators [29]; UNDP Human Development Index data) could be added to the framework and turn it into a mixed methods instrument that could offer statistical insights into the current status of the readiness scores.

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